

Before the Federal Maritime Commission, Washington, DC.

Docket No. 25-08

FormuKleen, Inc.
(Complainant)

vs.

Top Shipping Systems, Corp.
(Respondent)

**COMPLAINANT'S STATUS REPORT REGARDING AMENDED SCHEDULE AND
REQUEST TO ACCEPT LATE FILING**

Complainant FormuKleen, Inc., through its representative, submits this Status Report regarding the amended discovery and briefing schedule pursuant to the Presiding Officer's June 5, 2026 Order Following Status Conference. Complainant also respectfully requests that the Presiding Officer accept this filing after the June 10, 2026 deadline because justice requires acceptance of the late filing under 46 C.F.R. § 502.102(b).

On June 10, 2026, the parties conferred regarding an amended schedule. The parties agreed to the following dates:

Deadline for submission of additional discovery requests: June 19, 2026

Depositions, if any, begin: June 25, 2026

Close of discovery and completion of depositions, if any: July 9, 2026

Deadline for Complainant to amend Renewed Motion, if amended: July 15, 2026

Respondent's response to amended Renewed Motion, if amended: July 22, 2026

Complainant's opening brief, proposed findings of fact, and appendix due: August 25, 2026

Respondent's opposition brief, responses to proposed findings of fact, proposed findings of fact, and appendix due: September 10, 2026

Complainant's reply brief and responses to proposed findings of fact due: September 22, 2026

After the parties agreed to those dates, Respondent added an availability caveat stating that "Respondent remains unavailable from June 20 through July 6" and is also unavailable on July 10, July 30, and July 31. Respondent further stated that, although TSS was agreeable to the proposed schedule, "any depositions will need to be scheduled on dates that do not conflict with those previously identified availability constraints."

That caveat materially affected the proposed discovery period. A schedule stating that depositions may begin on June 25, 2026, and discovery closes on July 9, 2026, is not workable if Respondent simultaneously reserves the position that Respondent is unavailable from June 20 through July 6. That would leave only July 7, July 8, and July 9 for depositions before the discovery cutoff.

Complainant therefore advised Respondent that Complainant would not stipulate to a July 9, 2026 discovery cutoff unless Respondent agreed that any properly noticed TSS witness, including any employee, officer, corporate designee, or other person under Respondent's control, would be made available for deposition during the agreed discovery period. Complainant also asked Respondent to clarify whether "Respondent" meant Top Shipping Systems Corp. as a whole or only Respondent's representative personally.

Respondent did not provide that clarification until after business hours on June 11, 2026. Respondent then stated that "TSS is not representing that all TSS witnesses are unavailable during that period." However, Respondent still did not agree that properly noticed TSS witnesses

would be made available during the proposed discovery period. Instead, Respondent stated that “[t]he availability of any particular witness will depend on the witness identified and the date requested.” Respondent later stated only that TSS would make “reasonable efforts” to make identified witnesses available. Respondent did not identify the “certain personnel” allegedly affected by those scheduling constraints, nor did Respondent identify any TSS witness, employee, officer, corporate designee, or other person under Respondent’s control who would be available for deposition during the proposed June 25 to July 9 discover period.

Exhibit A

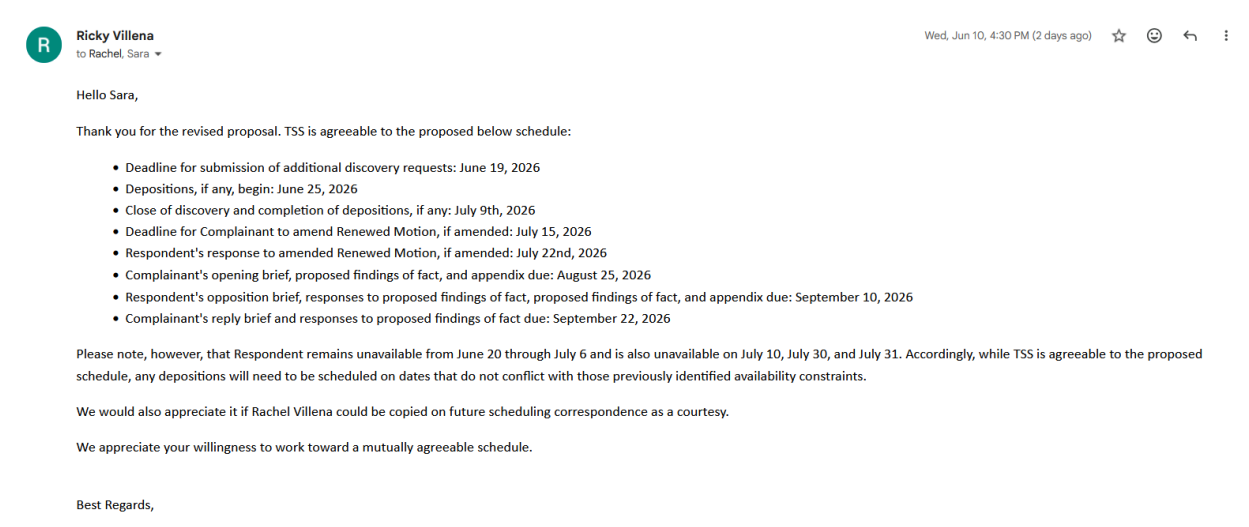


Exhibit B

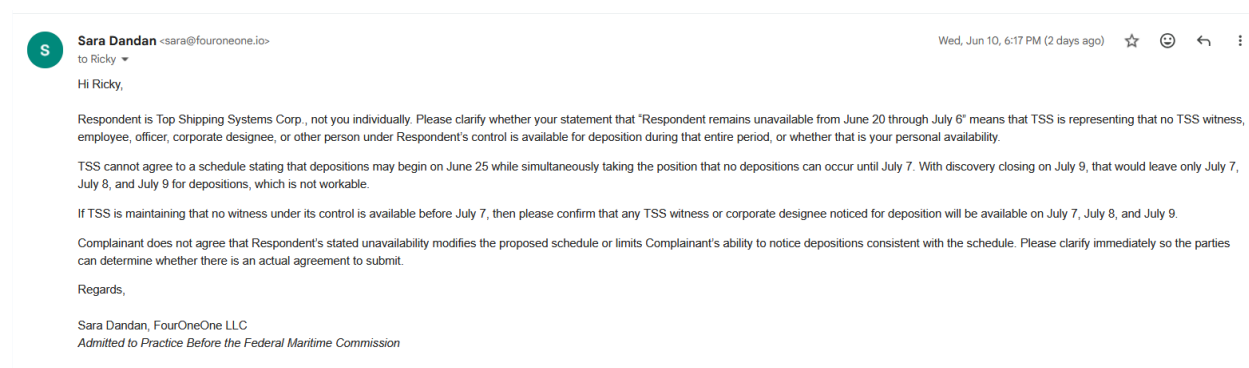


Exhibit C

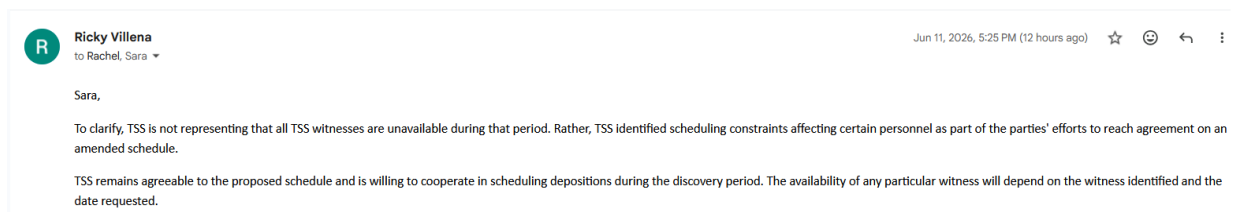


Exhibit D

From: sara@fouroneone.io <sara@fouroneone.io>
Sent: Thursday, June 11, 2026 6:40 PM
To: Ricky Villena <ricky.villena@tssc corp.us>
Subject: Re: New Proposed Schedule

The Presiding Officer specifically encouraged Respondent to make its employees available for deposition without the need for an order.

Complainant will not stipulate to a discovery cutoff of July 9, 2026 unless Respondent agrees that any properly noticed TSS witness, including any employee, officer, corporate designee, or other person under Respondent's control, will be made available for deposition during the agreed discovery period.

A schedule stating that depositions may begin on June 25 and discovery closes on July 9 is not workable if Respondent reserves the ability to object that particular TSS witnesses are unavailable during that same period.

Please confirm whether TSS agrees. Complainant will file with the Commission on the morning of the 12th if a schedule is not agreed to tonight. Respondent did not confer all day today and only sent this after business hours when they were aware of their obligations under the ALJs Order.

Exhibit E

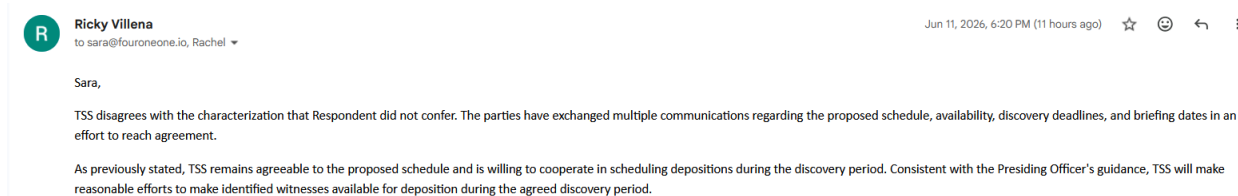
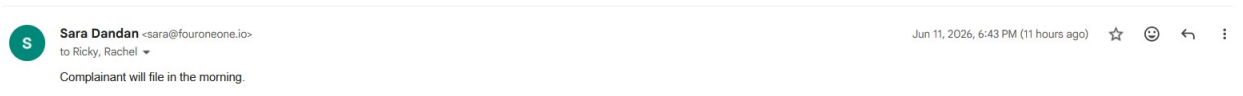


Exhibit F



That response did not resolve the issue. Complainant cannot properly notice depositions without an entered schedule, and Respondent's caveat prevents Complainant from knowing whether the proposed discovery period is real or illusory. Respondent's position would allow it to agree to a July 9 discovery cutoff in principle while later objecting, witness by witness and date by date, that the necessary TSS witnesses are unavailable during that same period.

Respondent's latest position follows the same pattern that has required repeated intervention in discovery. Respondent agrees to obligations only in form, then adds qualifications that would allow it to avoid compliance in practice. Here, Respondent agreed to dates under which depositions may begin on June 25 and discovery closes on July 9, but then refused to commit that properly noticed TSS witnesses will actually be available during that period. That is not cooperation. It is another attempt to preserve an excuse to delay discovery while claiming to have agreed to the schedule.

The Presiding Officer's June 11 Order specifically encouraged Respondent to make its employees available for deposition without the need for an order and reminded Respondent that default judgment may be entered against a respondent who fails to cooperate with discovery. Complainant's position is consistent with that direction. If Respondent wants a July 9 discovery cutoff, Respondent should be required to make properly noticed TSS witnesses available for deposition during that discovery period.

Complainant respectfully submits that justice requires acceptance of this late filing because the parties conferred on June 10, 2026, agreed to dates, and the delay resulted from Respondent's post-agreement availability caveat and Respondent's failure to provide a clear commitment that properly noticed TSS witnesses would be available for deposition during the proposed discovery period. Complainant is submitting this filing promptly after Respondent's June 11 after-hours response failed to resolve that issue.

Complainant respectfully requests that the Presiding Officer accept this late filing and enter the agreed schedule set forth above. Complainant further respectfully requests that, if the Presiding Officer enters a July 9, 2026 discovery cutoff, the schedule make clear that Respondent must make properly noticed TSS witnesses, including employees, officers, corporate designees, and other persons under Respondent's control, available for deposition during the discovery period without the need for further order.

Respectfully submitted,

Sara Dandan

Licensed to practice before the Commission and in good standing

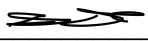
FourOneOne LLC

2501 Chatham Rd, Suite 8082

Springfield, IL 62704

Email: sara@fouroneone.io

Phone: 630-286-9846

Signature: _____

Date: 06/12/2026

CERTIFICATE OF SERVICE

I certify that on June 12, 2026, a true and correct copy of the foregoing was filed via electronic mail with the Federal Maritime Commission and the following known parties of record for the Respondent:

Ricky Villena

Top Shipping Systems, Corp.

12480 NW 25th Street, Ste. 100

Miami, Florida 33182

ricky.villena@tsscorp.us

Sara Dandan

